

(CNR No.HRGR01-007022-2019) (CIS No. COMA/5/2019)
SFIO Vs. Adarsh Buildestate Limited & others

Present: Sh. Satish Aggarwal, Senior Counsel along with
Sh. Lokender Raghav, Senior Standing Counsel for
complainant-SFIO.
Sh. Hari Kishan, Prosecutor for complainant-SFIO.
Sh. Prashant Baliyan, Investigating Officer for complainant-SFIO.

This order will dispose of an application filed by the applicant-complainant seeking correction in the clerical error in the order dated 03.06.2019. After considering the contentions of learned counsel for the applicant-complainant and records, it comes out that as per the detailed order dated 03.06.2019 a complete order summoning all the accused for different offences was passed but as explained by learned counsel for the complainant while mentioning the details of the accused persons and the offences for which they have been summoned in Para No.9 under XX paras inadvertently some of the names of the accused and companies were left and some were added inadvertently because of a computer related inadvertent mistake while pasting the names of the accused persons and the offences for which they have been summoned. In this regard, it is explained that under Para (I) of Para 9 although name of the companies was duly mentioned but name of the private accused persons A-115 to A-141 was not mentioned inadvertently although during discussion it was held that they are also liable to be prosecuted as explained in the table showing the summary of findings and violations as per the investigation report.

Similarly, in Para (V) of Para 9 although name of the private accused persons were mentioned but inadvertently the name of the companies and some private accused persons were not mentioned although the word companies was there but on account of non-pasting the name of the companies inadvertently the details of the company was not mentioned.

Similarly, in Para (VI) of Para 9 name of one of the private

accused (A-122) Virender Modi was not mentioned inadvertently.

Similarly, in Para (VII) of Para 9 name of one of the private accused namely (A-154) Bharat Mardia was wrongly mentioned in place of (A-126) Bharat Modi. Whereas name of private accused person (A-122) Virender Parkashraj Modi was not mentioned inadvertently.

Similarly, in Para (VIII) of Para 9 name of three accused persons namely Shinder Pal Singh (A-137), Gurbir Singh Sandhu (A-138) and Mahesh Dutt Sharma (A-178) were wrongly mentioned whereas they were not ordered to be summoned for the offence mentioned in that part.

Needless to say in *Sooraj Devi vs. Pyare Lal, (1981) 1 SCC 500*, it was held by the Hon'ble Supreme Court that;

“A clerical or arithmetical error is an error occasioned by an accidental slip or omission of the court. It represents that which the court never intended to say. It is an error apparent on the face of the record and does not depend for its discovery on argument or disputation. An arithmetical error is a mistake of calculation, and a clerical error is a mistake in writing or typing.”

In view of the above legal position and facts, it is clear that on account of some computer related issues and mistakes while cut and paste of the names of the accused persons which were being repeatedly mentioned, the above said inadvertent mistakes occurred whereas in the discussion there were proper details about their roles. In these facts and circumstances the application filed by the complainant for correction of these mistakes is allowed and it is ordered that instead of Para No.9 as already mentioned in the order dated 03.06.2019 will be substituted by the following para:-

“I. that all the companies Adarsh Buildestate Limited (A-1), Aaditya Mega Projects Private Limited (A-2), Adarsh Agro Seeds Private Limited (A-3), Adarsh Crops Private

Limited (A-4), Adarsh Green Farming Private Limited (A-5), Adarsh Organic Foods Private Limited (A-6), Adarsh Thoughtworks Private Limited (A-7), Ansh Build Estate Private Limited (A-8), Applique Buildestate Private Limited (A-9), Arizona Realestate Private Limited (A-10), Aryarth Capital Enterprises Private Limited (A-11), Asha Agro Seeds Private Limited (A-12), Asha Crops and Agriculture Private Limited (A-13), Asha Kisan Agro Private Limited (A-14), Bathing Sun Realty Private Limited (A-15), Best Buildcreations Private Limited (A-16), Big Blue Developers Private Limited (A-17), Blue Water Realty Private Limited (A-18), Bondi Builders & Developers Private Limited (A-19), Bramha Infracon Private Limited (A-20), Chevron Buildcon Private Limited (A-21), Daisy Infratech Private Limited (A-22), Deniz Builders & Developers Private Limited (A-23), Divya Buildcreations Private Limited (A-24), Divyahome Projects Private Limited (A-25), Earth Buildcreation Private Limited (A-26), Entice Realtech Private Limited (A-27), Eshwar Buildtech Private Limited (A-28), Gajanan Infrabuild Private Limited (A-29), Govindam Buildstates Private Limited (A-30), Maisonette Infraestates Private Limited (A-31), Marven Buildcon Private Limited (A-32), Marven Greenhomes Private Limited (A-33), Mascot Infrabuild Private Limited (A-34), Nirwana Buildcon Private Limited (A-35), Pan Infratech Private Limited (A-36), Park Dublin Builders Private Limited (A-37), Parthsarthi Megamalls Private Limited (A-38), Pine Infracon Private Limited (A-39), Prime Time Infraprojects Private Limited (A-40), Raghuvanshi Realestates Private Limited (A-41), Redkey Buildcon Private Limited (A-42), Reed Promoters & Developers Private Ltd. (A-43), Sambhav Township Private Limited (A-44), Shack Infrastructure Private Limited (A-45), Shourya Buildstates Private Limited (A-46), Star Buildstates Private Limited (A-47), Sun Dream build Private Limited (A-48), Tectonic Infrastructure Private Limited (A-49), Valerian Buildtech Private Limited (A-50), Vasudev Infra Buildcon Private Limited (A-51), Vasudha Realcon Private Limited (A-52), Victory Buildstates Private Limited (A-53), Vishavam Infrabuild Private Limited (A-54), Vista Dream Homes Private Limited (A-55), Vrindavan Dreamestates

Private Limited (A-56), Waterfall Real Estates Private Limited (A-57), Glorious Realhome Private Limited (A-58), Mother Land Buildhomes Private Limited (A-59), Gharonda Buildstates Private Limited (A-60), Ghanta Karn Buildstates & Land Developers Pvt Ltd. (A-61), Sambhav Energy Limited (A-62), Dwell Buildstates Private Limited (A-63), Adarsh Tech Innovision Private Limited (A-64), Fracton Technologies Private Limited (A-65), Vaayu Build Tech Private Limited (A-66), Shree Veerji Battery Private Limited (A-67), Virendra Modi Buildestate Pvt Ltd (A-68), Aryarth Agrichem Private Limited (A-69), Adarsh Producers Limited (A-70), Sidhartha Ahar Vihar Udyan Private Limited (A-71), CSN Estates Private Limited (A-72), Palm Tree Buildcon Pvt Ltd (A-73), Rosemary Buildcon Private Limited (A-74), Sidhartha Buildtech Private Limited (A-75), NA Developers Private Limited (A-76), Ish Kripa Properties Private Limited (A-77), Sidhartha Buildhome Private Limited (A-78), A3G Infra Private Limited (A-79), Prince Realbuild Private Limited (A-80), HNS Infratech Private Limited (A-81), HNS Projects Private Limited (A-82), Sears Built Private Limited (A-83), Abhay K Shah & Associates (A-84), Axtron Tex Chem (I) Pvt Ltd. (A-85) including one auditor firm through its Directors and authorized employees, Mukesh Modi (A-113), Rahul Virendra Modi (A-114), Vivek Harivyasi (A-115), Nitin Rathore (A-116), Priyanka Modi (A-117), Jinendra Vyas (A-118), Vinay Kumpawat (A-119), Vaibhav Lodha (A-120), Paras Bolia (A-121), Virender Modi (A-122), Rohit Modi (A-123), Neha Gemawat (A-124), Rajeshwar Singh (A-125), Bharat Modi (A-126), Abhay K Shah (A-127), Manish Chaudhary (A-128), Deepak Shrimali (A-129), Jainam Rathod (A-130), Ishwar Singh Sindal (A-131), Meenakshi Modi (A-132), Prakash Chandra Purohit (A-133), Vivek Purohit (A-134), Sidharth Chauhan (A-135), Akshat Singh (A-136), Shinder Pal Singh (A-137), Gurbir Singh Sandhu (A-138), Naveen Kumar (A-139), Surender Singh (A-140), Aditya Sarda (A-141) are liable to be prosecuted for commission of an offence as punishable under Section 447 of the Companies Act, 2013;

II. And that accused Adarsh Buildestate Limited (A-1),

Aaditya Mega Projects Private Limited (A-2), Adarsh Agro Seeds Private Limited (A-3), Adarsh Crops Private Limited (A-4), Adarsh Green Farming Private Limited (A-5), Adarsh Organic Foods Private Limited (A-6), Adarsh Thoughtworks Private Limited (A-7), Ansh Build Estate Private Limited (A-8), Applique Buildestate Private Limited (A-9), Arizona Realstate Private Limited (A-10), Aryarth Capital Enterprises Private Limited (A-11), Asha Agro Seeds Private Limited (A-12), Asha Crops and Agriculture Private Limited (A-13), Asha Kisan Agro Private Limited (A-14), Bathing Sun Realty Private Limited (A-15), Best Buildcreations Private Limited (A-16), Big Blue Developers Private Limited (A-17), Blue Water Realty Private Limited (A-18), Bondi Builders & Developers Private Limited (A-19), Bramha Infracon Private Limited (A-20), Chevron Buildcon Private Limited (A-21), Daisy Infratech Private Limited (A-22), Deniz Builders & Developers Private Limited (A-23), Divya Buildcreations Private Limited (A-24), Divyahome Projects Private Limited (A-25), Earth Buildcreation Private Limited (A-26), Entice Realtech Private Limited (A-27), Eshwar Buildtech Private Limited (A-28), Gajanan Infrabuild Private Limited (A-29), Govindam Buildstates Private Limited (A-30), Maisonette Infraestates Private Limited (A-31), Marven Buildcon Private Limited (A-32), Marven Greenhomes Private Limited (A-33), Mascot Infrabuild Private Limited (A-34), Nirwana Buildcon Private Limited (A-35), Pan Infratech Private Limited (A-36), Park Dublin Builders Private Limited (A-37), Parthsarathi Megamalls Private Limited (A-38), Pine Infracon Private Limited (A-39), Prime Time Infraprojects Private Limited (A-40), Raghuvanshi Realstates Private Limited (A-41), Redkey Buildcon Private Limited (A-42), Reed Promoters & Developers Private Ltd. (A-43), Sambhav Township Private Limited (A-44), Shack Infrastructure Private Limited (A-45), Shourya Buildstates Private Limited (A-46), Star Buildstates Private Limited (A-47), Sun Dream build Private Limited (A-48), Tectonic Infrastructure Private Limited (A-49), Valerian Buildtech Private Limited (A-50), Vasudev Infra Buildcon Private Limited (A-51), Vasudha Realcon Private Limited (A-52), Victory Buildstates Private Limited (A-53), Vishavam

Infrabuild Private Limited (A-54), Vista Dream Homes Private Limited (A-55), Vrindavan Dreamestates Private Limited (A-56), Waterfall Real Estates Private Limited (A-57), Glorious Realhome Private Limited (A-58), Mother Land Buildhomes Private Limited (A-59), Gharonda Buildstates Private Limited (A-60), Ghanta Karn Buildstates & Land Developers Pvt Ltd. (A-61), Sambhav Energy Limited (A-62), Dwell Buildstates Private Limited (A-63), Adarsh Tech Innovision Private Limited (A-64), Fracton Technologies Private Limited (A-65), Vaayu Build Tech Private Limited (A-66), Shree Veerji Battery Private Limited (A-67), Virendra Modi Buildestate Pvt Ltd (A-68), Aryarth Agrichem Private Limited (A-69), Adarsh Producers Limited (A-70), Sidhartha Ahar Vihar Udyan Private Limited (A-71), CSN Estates Private Limited (A-72), Palm Tree Buildcon Pvt Ltd (A-73), Rosemary Buildcon Private Limited (A-74), Sidhartha Buildtech Private Limited (A-75), NA Developers Private Limited (A-76), Ish Kripa Properties Private Limited (A-77), Sidhartha Buildhome Private Limited (A-78), A3G Infra Private Limited (A-79), Prince Realbuild Private Limited (A-80), HNS Infratech Private Limited (A-81), HNS Projects Private Limited (A-82), Sears Built Private Limited (A-83), Abhay K Shah & Associates (A-84), Axtron Tex Chem (I) Pvt Ltd. (A-85), Mukesh Modi (A-113), Rahul Virendra Modi (A-114), Vivek Harivyasi (A-115), Nitin Rathore (A-116), Priyanka Modi (A-117), Jinendra Vyas (A-118), Vinay Kumpawat (A-119), Vaibhav Lodha (A-120), Paras Bolia (A-121), Virender Modi (A-122), Rohit Modi (A-123), Neha Gemawat (A-124), Rajeshwar Singh (A-125), Bharat Modi (A-126), Abhay K Shah (A-127), Manish Chaudhary (A-128), Deepak Shrimali (A-129), Jainam Rathod (A-130), Ishwar Singh Sindal (A-131), Meenakshi Modi (A-132), Prakash Chandra Purohit (A-133), Vivek Purohit (A-134), Sidharth Chauhan (A-135), Akshat Singh (A-136), Shinder Pal Singh (A-137), Gurbir Singh Sandhu (A-138), Naveen Kumar (A-139), Surender Singh (A-140), Aditya Sarda (A-141) are also liable to be prosecuted for commission of an offence as punishable under Sections 120B read with Section 417, 418, 420 of IPC;

III. And that the accused Mukesh Modi (A-113), Priyanka Modi (A-117) and Rahul Modi (A-114) are also liable to be prosecuted for commission of an offence as punishable under Section 406 IPC;

IV. And that the accused Mukesh Modi (A-113), Rahul Modi (A-114), Rohit Modi (A-123), Vaibhav Lodha (A-120), Rajeshwar Singh (A-125), Vivek Purohit (A-134), Neha Gemawat (A-124), Jainam Rathod (A-130) are also liable to be prosecuted for commission of an offence as punishable under Sections 467, 468, 471, 474 read with Section 120B IPC;

V. And that the accused Adarsh Buildestate Limited (A-1), Aaditya Mega Projects Private Limited (A-2), Adarsh Thoughtworks Private Limited (A-7), Ansh Build Estate Private Limited (A-8), Applique Buildestate Private Limited (A-9), Arizona Realestate Private Limited (A-10), Aryarth Capital Enterprises Private Limited (A-11), Bathing Sun Realty Private Limited (A-15), Best Buildcreations Private Limited (A-16), Big Blue Developers Private Limited (A-17), Blue Water Realty Private Limited (A-18), Bondi Builders & Developers Private Limited (A-19), Bramha Infracon Private Limited (A-20), Chevron Buildcon Private Limited (A-21), Deniz Builders & Developers Private Limited (A-23), Divya Buildcreations Private Limited (A-24), Divyahome Projects Private Limited (A-25), Earth Buildcreation Private Limited (A-26), Entice Realtech Private Limited (A-27), Eshwar Buildtech Private Limited (A-28), Gajanan Infrabuild Private Limited (A-29), Govindam Buildstates Private Limited (A-30), Marven Buildcon Private Limited (A-32), Marven Greenhomes Private Limited (A-33), Mascot Infrabuild Private Limited (A-34), Nirwana Buildcon Private Limited (A-35), Pan Infratech Private Limited (A-36), Park Dublin Builders Private Limited (A-37), Parthsarathi Megamalls Private Limited (A-38), Pine Infracon Private Limited (A-39), Prime Time Infraprojects Private Limited (A-40), Raghuvanshi Realestates Private Limited (A-41), Redkey Buildcon Private Limited (A-42), Reed Promoters & Developers Private Ltd. (A-43), Sambhav Township Private

Limited (A-44), Shourya Buildestates Private Limited (A-46), Star Buildestates Private Limited (A-47), Sun Dream build Private Limited (A-48), Valerian Buildtech Private Limited (A-50), Vasudev Infra Buildcon Private Limited (A-51), Vasudha Realcon Private Limited (A-52), Victory Buildestates Private Limited (A-53), Vishavam Infrabuild Private Limited (A-54), Vista Dream Homes Private Limited (A-55), Vrindavan Dreamestates Private Limited (A-56), Waterfall Real Estates Private Limited (A-57), Glorious Realhome Private Limited (A-58), Mother Land Buildhomes Private Limited (A-59), Gharonda Buildestates Private Limited (A-60), Ghanta Karn Buildestates & Land Developers Pvt Ltd. (A-61), Sambhav Energy Limited (A-62), Dwell Buildestates Private Limited (A-63), Adarsh Tech Innovision Private Limited (A-64), Fracton Technologies Private Limited (A-65), Mukesh Modi (A-113), Rahul Virendra Modi (A-114), Vivek Harivyasi (A-115), Nitin Rathore (A-116), Pryanka Modi (A-117), Jinendra Vyas (A-118), Vinay Kumpawat (A-119), Vaibhav Lodha (A-120), Virender Modi (A-122), Rohit Modi (A-123), Neha Gemawat (A-124), Rajeshwar Singh (A-125), Bharat Modi (A-126), Manish Chaudhary (A-128), Deepak Shrimali (A-129), Prakash Chandra Purohit (A-133), Vivek Purohit (A-134), Akshat Singh (A-136), Naveen Kumar (A-139), Bharat Das Vaishnav (A-142), Sudhir Punia (A-143), Joydeep Das Gupta (A-144), Lovekush Sharma (A-145), Leena Harivyasi (A-146), Vimal Sanwarmal Sharma (A-147), Avanish Kumar Tyagi (A-148), Vijay Shukla (A-149), Ajit Singh Rathore (A-150), Poonam Madan (A-151), Nazima Khan (A-152), Shabbir Khan (A-153), Bharat Kumar Mardia (A-154), Mahendra Kumar Tak (A-155) are also liable to be prosecuted for commission of an offence as punishable under Section 58A of the Companies Act, 1956.

VI. And that the accused Adarsh Buildestate Limited (A-1), Aaditya Mega Projects Private Limited (A-2), Adarsh Thoughtworks Private Limited (A-7), Ansh Build Estate Private Limited (A-8), Applique Buildestate Private Limited (A-9), Arizona Realestate Private Limited (A-10), Aryarth Capital Enterprises Private Limited (A-11), Bathing Sun

Realty Private Limited (A-15), Best Buildcreations Private Limited (A-16), Big Blue Developers Private Limited (A-17), Blue Water Realty Private Limited (A-18), Bondi Builders & Developers Private Limited (A-19), Bramha Infracon Private Limited (A-20), Chevron Buildcon Private Limited (A-21), Deniz Builders & Developers Private Limited (A-23), Divya Buildcreations Private Limited (A-24), Divyahome Projects Private Limited (A-25), Earth Buildcreation Private Limited (A-26), Entice Realtech Private Limited (A-27), Eshwar Buildtech Private Limited (A-28), Gajanan Infrabuild Private Limited (A-29), Govindam Buildstates Private Limited (A-30), Marven Buildcon Private Limited (A-32), Marven Greenhomes Private Limited (A-33), Mascot Infrabuild Private Limited (A-34), Nirwana Buildcon Private Limited (A-35), Pan Infratech Private Limited (A-36), Park Dublin Builders Private Limited (A-37), Parthsarthi Megamalls Private Limited (A-38), Pine Infracon Private Limited (A-39), Prime Time Infraprojects Private Limited (A-40), Raghuvanshi Realestates Private Limited (A-41), Redkey Buildcon Private Limited (A-42), Reed Promoters & Developers Private Ltd. (A-43), Sambhav Township Private Limited (A-44), Shourya Buildstates Private Limited (A-46), Star Buildstates Private Limited (A-47), Sun Dream build Private Limited (A-48), Valerian Buildtech Private Limited (A-50), Vasudev Infra Buildcon Private Limited (A-51), Vasudha Realcon Private Limited (A-52), Victory Buildstates Private Limited (A-53), Vishavam Infrabuild Private Limited (A-54), Vista Dream Homes Private Limited (A-55), Vrindavan Dreamestates Private Limited (A-56), Waterfall Real Estates Private Limited (A-57), Glorious Realhome Private Limited (A-58), Mother Land Buildhomes Private Limited (A-59), Gharonda Buildstates Private Limited (A-60), Ghanta Karn Buildstates & Land Developers Pvt Ltd. (A-61), Sambhav Energy Limited (A-62), Dwell Buildstates Private Limited (A-63), Adarsh Tech Innovision Private Limited (A-64), Fracton Technologies Private Limited (A-65), Mukesh Modi (A-113), Rahul Virendra Modi (A-114), Vivek Harivyasi (A-115), Nitin Rathore (A-116), Priyanka Modi (A-117), Jinendra Vyas (A-118), Vinay Kumpawat (A-119), Vaibhav Lodha (A-120),

Virender Modi (A-122), Rohit Modi (A-123), Neha Gemawat (A-124), Rajeshwar Singh (A-125), Bharat Modi (A-126), Manish Chaudhary (A-128), Deepak Shrimali (A-129), Prakash Chandra Purohit (A-133), Vivek Purohit (A-134), Akshat Singh (A-136), Naveen Kumar (A-139), Bharat Das Vaishnav (A-142), Sudhir Punia (A-143), Joydeep Das Gupta (A-144), Lovekush Sharma (A-145), Leena Hariviyasi (A-146), Vimal Sanwermal Sharma (A-147), Avanish Kumar Tyagi (A-148), Vijay Shukla (A-149), Ajit Singh Rathore (A-150), Poonam Madan (A-151), Nazima Khan (A-152), Shabbir Khan (A-153), Bharat Kumar Mardia (A-154), Mahendra Kumar Tak (A-155) are also liable to be prosecuted for commission of an offence as punishable under Section 74(3) of the Companies Act, 2013;

VII. And that the accused Aaditya Mega Projects Private Limited (A-2), Adarsh Buldestate Limited (A-1), Adarsh Thoughtworks Private Limited (A-7), Ansh Build Estate Private Limited (A-8), Applique Buldestate Private Limited (A-9), Aryarth Capital Enterprises Private Limited (A-11), Bathing Sun Realty Private Limited (A-15), Best Buildcreations Private Limited (A-16), Big Blue Developers Private Limited (A-17), Bondi Builders & Developers Private Limited (A-19), Chevron Buildcon Private Limited (A-21), Deniz Builders & Developers Private Limited (A-23), Divya Buildcreations Private Limited (A-24), Divyahome Projects Private Limited (A-25), Gajanan Infrabuild Private Limited (A-29), Marven Greenhomes Private Limited (A-33), Mascot Infrabuild Private Limited (A-34), Pan Infratech Private Limited (A-36), Park Dublin Builders Private Limited (A-37), Pine Infracon Private Limited (A-39), Prime Time Infraprojects Private Limited (A-40), Raghuvanshi Realestates Private Limited (A-41), Redkey Buildcon Private Limited (A-42), Reed Promoters & Developers Private Limited (A-43), Shourya Buldestates Private Limited (A-46), Star Buldestates Private Limited (A-47), Vasudha Realcon Private Limited (A-52), Victory Buldestates Private Limited (A-53), Vista Dream Homes Private Limited (A-55), Vrindavan Dreamestates Private Limited (A-56), Sambhav Energy Limited (A-44), Fracton Technologies Private

Limited (A-65), Adarsh Agro Seeds Private Limited (A-3), Adarsh Crops Private Limited (A-4), Adarsh Green Farming Private Limited (A-5), Adarsh Organic Foods Private Limited (A-6), Asha Agro Seeds Private Limited (A-12), Asha Crops and Agriculture Private Limited (A-13), Asha Kisan Agro Private Limited (A-14), Daisy Infratech Private Limited (A-22), Maisonette Infraestates Private Limited (A-31), Shack Infrastructure Private Limited (A-45), Tectonic Infrastructure Private Limited (A-49), Entice Realtech Private Limited (A-27), Govindam Buildestates Private Limited (A-30), Nirwana Buildcon Private Limited (A-35), Sun Dream Build Private Limited (A-48), Waterfall Real Estates Private Limited (A-57), Rohit Virendra Modi (A-123), Rajeshwar Singh (A-125), Bharat Das Vaishnav (A-142), Vivek Purohit (A-134), Bharat Kumar Modi (A-126), Rahul Modi (A-114), Prakash Chandra Purohit (A-133), Vaibhav Lodha (A-120), Neha Gemawat (A-124), Mukesh Kumar Modi (A-113), Virendra Prakashraj Modi (A-122), Mahender Kumar Tak (A-155), Praveen Maheshwarei (A-156), Rajeev Maheshwarei (A-157) are also liable to be prosecuted for the commission of offence as punishable under Section 76A of the Companies Act, 2013;

VIII. And that the accused Adarsh Buildestate Limited (A-1), Aaditya Mega Projects Private Limited (A-2), Adarsh Agro Seeds Private Limited (A-3), Adarsh Crops Private Limited (A-4), Adarsh Green Farming Private Limited (A-5), Adarsh Organic Foods Private Limited (A-6), Adarsh Thoughtworks Private Limited (A-7), Ansh Build Estate Private Limited (A-8), Applique Buildestate Private Limited (A-9), Arizona Realestate Private Limited (A-10), Aryarth Capital Enterprises Private Limited (A-11), Asha Agro Seeds Private Limited (A-12), Asha Crops and Agriculture Private Limited (A-13), Asha Kisan Agro Private Limited (A-14), Bathing Sun Realty Private Limited (A-15), Best Buildcreations Private Limited (A-16), Big Blue Developers Private Limited (A-17), Blue Water Realty Private Limited (A-18), Bondi Builders & Developers Private Limited (A-19), Bramha Infracon Private Limited (A-20), Chevron Buildcon Private Limited (A-21), Daisy Infratech Private Limited (A-22), Deniz Builders & Developers Private

Limited (A-23), Divya Buildcreations Private Limited (A-24), Divyahome Projects Private Limited (A-25), Earth Buildcreation Private Limited (A-26), Entice Realtech Private Limited (A-27), Eshwar Buildtech Private Limited (A-28), Gajanan Infrabuild Private Limited (A-29), Govindam Buildestates Private Limited (A-30), Maisonette Infraestates Private Limited (A-31), Marven Buildcon Private Limited (A-32), Marven Greenhomes Private Limited (A-33), Mascot Infrabuild Private Limited (A-34), Nirwana Buildcon Private Limited (A-35), Pan Infratech Private Limited (A-36), Park Dublin Builders Private Limited (A-37), Parthsarthi Megamalls Private Limited (A-38), Pine Infracon Private Limited (A-39), Prime Time Infraprojects Private Limited (A-40), Raghuvanshi Realestates Private Limited (A-41), Redkey Buildcon Private Limited (A-42), Reed Promoters & Developers Private Ltd. (A-43), Sambhav Township Private Limited (A-44), Shack Infrastructure Private Limited (A-45), Shourya Buildestates Private Limited (A-46), Star Buildestates Private Limited (A-47), Sun Dream build Private Limited (A-48), Tectonic Infrastructure Private Limited (A-49), Valerian Buildtech Private Limited (A-50), Vasudev Infra Buildcon Private Limited (A-51), Vasudha Realcon Private Limited (A-52), Victory Buildestates Private Limited (A-53), Vishavam Infrabuild Private Limited (A-54), Vista Dream Homes Private Limited (A-55), Vrindavan Dreamestates Private Limited (A-56), Waterfall Real Estates Private Limited (A-57), Glorious Realhome Private Limited (A-58), Mother Land Buildhomes Private Limited (A-59), Gharonda Buildestates Private Limited (A-60), Ghanta Karn Buildestates & Land Developers Pvt Ltd. (A-61), Sambhav Energy Limited (A-62), Dwell Buildestates Private Limited (A-63), Adarsh Tech Innovision Private Limited (A-64), Fracton Technologies Private Limited (A-65), Abhay K Shah & Associates (A-84), Mukesh Modi (A-113), Rahul Virendra Modi (A-114), Vivek Harivvysi (A-115), Nitin Rathore (A-116), Priyanka Modi (A-117), Jinendra Vyas (A-118), Vinay Kumpawat (A-119), Vaibhav Lodha (A-120), Virender Modi (A-122), Rohit Modi (A-123), Neha Gemawat (A-124), Rajeshwar Singh (A-125), Bharat Modi (A-126), Abhay K Shah (A-127), Manish Chaudhary (A-128), Deepak Shrimali

(A-129), Ishwar Singh Sindal (A-131), Meenakshi Modi (A-132), Prakash Chandra Purohit (A-133), Vivek Purohit (A-134), Akshat Singh (A-136), Naveen Kumar (A-139), Bharat Das Vaishnav (A-142), Sudhir Punia (A-143), Leena Hariviyasi (A-146), Vimal Sanwarmal Sharma (A-147), Vijay Shukla (A-149), Ajit Singh Rathore (A-150), Nazima Khan (A-152), Shabbir Khan (A-153), Mahendra Kumar Tak (A-155), Ramlal Arya (A-158), Hemant Kumar Jain (A-159), Shiv Raj Sharma (A-160), Praveen Kumar (A-161), Damyanti Bhandari (A-179), Ichchhita Dungarwal (A-180), Neha Kataria (A-181), Nimesh Kumar Ramesh Chandra Soni (A-182), Rituraj Singh (A-183), Dushyant Singh Rathore (A-184), Shashank Shekhar Singh Rathore (A-185), Jitesh Kumar Parmar (A-186 are also liable to be prosecuted for the commission of offence as punishable under Sections 211(7), 227 and 628 of the Companies Act, 1956 (for period till 31st March 2014) & 448 and also of offence as punishable u/s 147 & 447 respectively of the Companies Act, 2013 (for period after 31st March, 2014) & 477A of IPC;

IX. And that the accused Laxmikripa Buildcon Pvt. Ltd. (A-86), Riddhi Siddhi Infraproject Pvt. Ltd. (A-87), Ridhi Siddhi Infratech Pvt. Ltd. (A-88), SL Bohra & Associates (A-89), Saurabh Tak (A-172), Mahendra Kumar Tak (A-155), Mukesh Kumar Modi (A-113), Vivek Hariviyasi (A-115), Vinay Kumar Kumpawat (A-119), Naveen Choudhary (A-162), Manish Choudhary (A-128), Mahesh Kumar Tak (A-187), Megha Chauhan (A-163), Indu Tak (A-164), Paras Bolia (A-121), Shyam Bihari Gupta (A-165), Ravi Tak (A-166), Rajeev Verma (A-167), Sushil Maloo (A-168), Rajendra Singh Bhandari (A-169), Raj Kumar Bohra (A-171), Sudhir Mehta (A-170), Rahul Modi (A-114), Priyanka Modi (A-117) are also liable to be prosecuted for the commission of offence as punishable under Section 447 of the Companies Act, 2013;

X. And that the accused Laxmikripa Buildcon Pvt. Ltd. (A-86), Riddhi Siddhi Infraproject Pvt. Ltd. (A-87), Ridhi Siddhi Infratech Pvt. Ltd. (A-88), SL Bohra & Associates (A-89), Saurabh Tak (A-172), Mahendra Kumar Tak (A-155),

Mukesh Kumar Modi (A-113), Vivek Harivyasi (A-115), Vinay Kumar Kumpawat (A-119), Naveen Choudhary (A-162), Manish Choudhary (A-128), Mahesh Kumar Tak (A-187), Megha Chauhan (A-163), Indu Tak (A-164), Paras Bolia (A-121), Shyam Bihari Gupta (A-165), Ravi Tak (A-166), Rajeev Verma (A-167), Sushil Maloo (A-168), Rajendra Singh Bhandari (A-169), Raj Kumar Bohra (A-171), Sudhir Mehta (A-170), Rahul Modi (A-114), Priyanka Modi (A-117) are also liable to be prosecuted for the commission of offence as punishable under Section 120B, 417, 418, 420 of IPC;

XI. And that the accused Laxmi Kripabuildcon Pvt. Ltd. (A-86), Riddhi Siddhi Infraproject Pvt Ltd. (A-87), Ridhi Siddhi Infratech Pvt. Ltd. (A-88), Saurabh Tak (A-172), Mahendra Kumar Tak (A-155), Mukesh Kumar Modi (A-113), Vivek Harivyasi (A-115), Naveen Choudhary (A-162), Manish Choudhary (A-128), Mahesh Kumar Tak (A-187), Megha Chauhan (A-163), Indu Tak (A-164), Paras Bolia (A-121), Shyam Bihari Gupta (A-165), Ravi Tak (A-166), Rajeev Verma (A-167), Sushil Maloo (A-168), Rajendra Singh Bhandari (A-169), Sudhir Mehta (A-170) are also liable to be prosecuted for the commission of offence as punishable under Section 58A of the Companies Act, 1956;

XII. And that the accused Laxmi Kripabuildcon Pvt. Ltd. (A-86), Riddhi Siddhi Infraproject Pvt Ltd. (A-87), Ridhi Sidhi Infratech Pvt. Ltd. (A-88), Saurabh Tak (A-172), Mahendra Kumar Tak (A-155), Mukesh Kumar Modi (A-113), Vivek Harivyasi (A-115), Naveen Choudhary (A-162), Manish Choudhary (A-128), Mahesh Kumar Tak (A-187), Megha Chauhan (A-163), Indu Tak (A-164), Paras Bolia (A-121), Shyam Bihari Gupta (A-165), Ravi Tak (A-166), Rajeev Verma (A-167), Sushil Maloo (A-168), Rajendra Singh Bhandari (A-169) are also liable to be prosecuted for the commission of offence as punishable under Section 74(3) of the Companies Act, 2013;

XIII. And that the accused Laxmi Kripabuildcon Pvt. Ltd. (A-86), Riddhi Siddhi Infraproject Pvt. Ltd. (A-87), Saurabh Tak (A-172), Mahendra Kumar Tak (A-155), Vivek Harivyasi

(A-115), Mahesh Kumar Tak (A-187), Megha Chauhan (A-163), Indu Tak (A-164), Paras Bolia (A-121), Shyam Bihari Gupta (A-165) are also liable to be prosecuted for the commission of offence as punishable under Section 76A of the Companies Act, 2013;

XIV. And that the accused Laxmi Kripabuildcon Pvt. Ltd. (A-86), Riddhi Siddhi Infraproject Pvt. Ltd. (A-87), Ridhi Siddhi Infratech Pvt. Ltd. (A-88), Saurabh Tak (A-172), Mahendra Kumar Tak (A-155), Mahesh Kumar Tak (A-187), Megha Chauhan (A-163), Paras Bolia (A-121), Shyam Bihari Gupta (A-165) are also liable to be prosecuted for the commission of offence as punishable under Sections 211(7), 227 and 628 of the Companies Act, 1956 (for period till 31st March, 2014) and also of offence as punishable u/s 147 & 447 respectively of the Companies Act, 2013 (for period after 31st March, 2014) & 477A of IPC;

XV. And that the accused Cynosure Real Estates Pvt. Ltd. (A-90), EOS Developers Pvt. Ltd. (A-91), Adler Infra Ventures Pvt. Ltd. (A-92), Headstrong International Exports Pvt. Ltd. (A-93), A3G Infra Pvt. Ltd. (A-79), Aarti Marketing Private Limited (A-94), Caranation Trading Private Limited (A-95), Cyan Financial Solutions Pvt. Ltd. (A-96), Lever Finvest Private Limited (A-97), Rolex Exports Private Limited (A-98), Dinkar Commercials Pvt. Ltd. (A-99), Amarendra Financial Private Limited (A-100), Alba Polymers Limited (A-101), Channel Nine Entertainment Limited (A-102), Funny Software Limited (A-103), Gold Line International Finvest Ltd. (A-104), Inceptum Enterprises Limited (A-105), Kanak Krishi Implements Limited (A-106), Padmawati Art Creation Pvt. Ltd. (A-107), Porche Capital Market Limited (A-108), Sagitarius Advertising Limited (A-109), Satkar Finlease Limited (A-110), Surya Marketing Limited (A-111), Vishal Digital Studio Color Lab Pvt. Ltd. (A-112), Vivek Harivyasi (A-115), Peeyush Aggarwal (A-173), P.V. Sangwan (A-174), Vijay Jhindal (A-175), Rajkumar Modi (A-176), Shinder Pal Singh (A-137), Gurbir Singh Sandhu (A-138) are also liable to be prosecuted for the commission of offence as punishable under Section 447 of

the Companies Act, 2013;

XVI. And that the accused Cynosure Real Estates Pvt. Ltd. (A-90), EOS Developers Pvt. Ltd. (A-91), Adler Infra Ventures Pvt. Ltd. (A-92), Headstrong International Exports Pvt. Ltd. (A-93), A3G Infra Pvt. Ltd. (A-79), Aarti Marketing Private Limited (A-94), Caranation Trading Private Limited (A-95), Cyan Financial Solutions Pvt. Ltd. (A-96), Lever Finvest Private Limited (A-97), Rolex Exports Private Limited (A-98), Dinkar Commercials Pvt. Ltd. (A-99), Amarendra Financial Private Limited (A-100), Alba Polymers Limited (A-101), Channel Nine Entertainment Limited (A-102), Funny Software Limited (A-103), Gold Line International Finvest Ltd. (A-104), Inceptum Enterprises Limited (A-105), Kanak Krishi Implements Limited (A-106), Padmawati Art Creation Pvt. Ltd. (A-107), Porche Capital Market Limited (A-108), Sagitarius Advertising Limited (A-109), Satkar Finlease Limited (A-110), Surya Marketing Limited (A-111), Vishal Digital Studio Color Lab Pvt. Ltd. (A-112), Vivek Hariviyasi (A-115), Peeyush Aggarwal (A-173), P.V. Sangwan (A-174), Vijay Jhindal (A-175), Rajkumar Modi (A-176), Shinder Pal Singh (A-137), Gurbir Singh Sandhu (A-138) are also liable to be prosecuted for the commission of offence as punishable under Section 120B and 418, 420 of IPC;

XVII. And that the accused Abhay K Shah & Associates (A-84), Abhay K Shah (A-127) are also liable to be prosecuted for the commission of offence as punishable under Section 147 of the Companies Act, 2013;

XVIII. And that the accused Rajiv Kumar Rana (A-177) is also liable to be prosecuted for the commission of offence as punishable under Section 447 of the Companies Act, 2013;

XIX. And that the accused Mahesh Dutt Sharma (A-178) is also liable to be prosecuted for the commission of offence as punishable under Section 447 of the Companies Act, 2013;

XX. And that the accused Sampati Lal Bohra & Associates

(CNR No.HRGR01-007022-2019) (CIS No. COMA/5/2019) -17-
SFIO Vs. Adarsh Buildestate Limited & others

(A-89) - audit firm and its two partners Raj Kumar Bohra (A-171) and Sudhir Mehta (A-170), and Peeyush Aggarwal (A-173) are also liable to be prosecuted for the commission of offence as punishable under Section 147 of the Companies Act, 2013.”

Let this para be also printed separately and made part of the main order with a note on the file. File be now put up after lunch for further proceedings as per order dated 05.07.2019.

**Pronounced in open Court
on this 11th day of July, 2019.**

(Ravi Kumar Sondhi)
(UID No. HR-0026)
Sessions Judge,
Gurugram.